



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

June 16, 2020

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 21036

EXPIRATION DATE: 2022-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Triad National Security, LLC
Los Alamos, NM
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of hazardous materials packaged in packaging that has not been closed in accordance with the manufacturer's closure instructions. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that the shipping paper must be notated with the special permit number ; § 172.301(c) in that the package must be marked with the special permit number; § 173.22(a)(4)(i) in that the a person must perform all functions necessary to bring the package into compliance with Parts 173 and 178 (i.e., using identical tape to close the package); and § 173.22(a)(4)(ii) in that a person must retain a copy of the manufacturer's closure instructions; and § 173.24(f)(2)

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in that a closure must conform to all requirements of the specification and must be closed in accordance with the information provided by the manufacturer's closure instructions, except as specified herein.

5. BASIS: This special permit is based on the application of Triad National Security, LLC dated April 13, 2020 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Division 1.4S hazardous materials	1.4S	As appropriate	N/A
Flammable liquids	3	As appropriate	I, II, or III
Flammable solids	4.1	As appropriate	I, II, or III
Oxidizers and organic peroxides	5	As appropriate	I, II, or III
Toxic solids and liquids	6.1	As appropriate	I, II, or III
Infectious substances	6.2	As appropriate	N/A
Corrosive solids and liquids	8	As appropriate	I, II, or III

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Miscellaneous hazardous materials	9	As appropriate	I, II, or III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: UN 4G fiberboard boxes (containing hazardous materials) that have been opened for labeling and inventory purposes at the Los Alamos National Laboratory (LANL) receiving warehouse prior to delivery to the final recipient.

b. OPERATIONAL CONTROLS:

(1) Each package must be reassembled as received and reclosed as follows:

(i) The flaps of the box must be folded in the same manner as they were closed (e.g., meeting in the middle, tucked into box).

(ii) The box must be closed with a strip or strips of tape of equal or greater width to that originally used on the box. The ends of the strip(s) of tape must extend at least as far as the original strip(s) of tape. Boxes must be closed in the same manner as received (e.g., single strip, H-pattern).

(A) Boxes with a gross weight not exceeding 100 pounds must be closed with either 3M Tape #375 or Shurtape HP 400®.

(B) Boxes with a gross weight exceeding 100 pounds must be closed with either 3M Tape #355 or Shurtape HP 500®.

(iii) If the inner packaging is inside a friction-lid metal can sealed with an overseal ring, the overseal ring must be replaced with a new,

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appropriately-sized Armlock® or Normlock™ overseal ring if the original ring is damaged during removal.

(2) Transportation of packages under the terms of this special permit must be conducted via private carriage.

(3) Transportation of packages under the terms of this special permit is limited to the route identified in Attachment 1. to the application submitted April 13, 2020 and on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

(4) Transportation of packages under the terms of this special permit is limited from the LANL receiving warehouse to LANL users within the LANL boundary identified in Attachment 1. to the application submitted April 13, 2020 and on file with the OHMSAPD.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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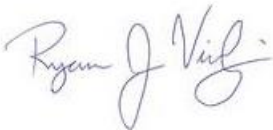
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the

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Hazardous Materials Safety Homepage at
<https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenMOORE